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AS AMENDED

By: Moore, Archer, and Caldwell
(Chad) of the House

Seifried of the Senate

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 1210.508. A. 1. By no later than December 31, 2016, the State Board of Education shall adopt a statewide system of student assessments in compliance with the Elementary and Secondary Education Act of 1965 (ESEA), as reauthorized and amended by P.L. No. 114-95, also known as the Every Student Succeeds Act (ESSA).

1 2. The statewide student assessment system adopted by the Board
2 pursuant to this subsection shall be aligned with the Oklahoma
3 Academic Standards as adopted by the Board and which prepare
4 students for college and careers.

5 B. 1. The Board shall issue a request for proposals for the
6 selection of assessments to be administered to students in grades
7 three through twelve as a part of the statewide student assessment
8 system adopted by the Board pursuant to this section.

9 2. The Board shall adopt assessments from the selected
10 proposals that were submitted pursuant to paragraph 1 of this
11 subsection. The adopted assessments shall be administered by the
12 Board for a period that is in coordination with the six-year subject
13 area textbook adoption cycle unless the vendor does not fulfill the
14 terms of the contract or fails to comply with or violates the terms
15 of the contract. The Board shall administer the assessments
16 beginning with the 2017-2018 school year.

17 C. The statewide student assessment system adopted by the Board
18 pursuant to this section shall include assessments that:

19 1. Are aligned with the Oklahoma subject matter standards as
20 adopted by the Board;

21 2. Provide a measure of comparability among other states;

22 3. Yield both norm-referenced scores and criterion-referenced
23 scores;
24

1 4. Have a track record of statistical reliability and accuracy;

2 and

3 5. For assessments administered in high school, provide a
4 measure of future academic performance.

5 D. For the 2016-2017 school year, the Board shall administer
6 assessments in:

7 1. English Language Arts or reading and mathematics in grades
8 three through eight and at least once in high school, during the
9 grade span of nine through twelve;

10 2. Science not less than once during each grade span of three
11 through five, six through nine, and ten through twelve; and

12 3. United States History not less than once during the grade
13 span of nine through twelve.

14 E. 1. Beginning with the 2017-2018 school year, the statewide
15 student assessment system shall include assessments in:

16 a. English Language Arts and mathematics in grades three
17 through eight and at least once in high school, during
18 the grade span of nine through twelve,

19 b. science not less than once during each grade span of
20 three through five, six through nine, and ten through
21 twelve, and

22 c. United States History, with an emphasis on civics, not
23 less than once during the grade span of nine through
24 twelve.

1 2. Beginning with the 2017-2018 school year, the statewide
2 student assessment system may include:

3 a. assessments in reading, writing, and mathematics in
4 certain grades as determined by the Board, and

5 b. contingent upon the availability of funds, an
6 additional nationally recognized college- and career-
7 readiness assessment or assessments as recommended by
8 the State Department of Education which will be
9 administered to students in high school at no cost to
10 the student.

11 F. 1. Beginning with students entering the ninth grade in the
12 2017-2018 school year, each student shall take the assessment or
13 assessments included in the statewide student assessment system
14 adopted by the Board pursuant to subsection A of this section in
15 order to graduate from a public high school with a standard diploma.
16 All students shall take the assessment or assessments prior to
17 graduation, unless otherwise exempt by law.

18 2. Beginning with students entering the ninth grade in the
19 2017-2018 school year, each student, in addition to taking the
20 assessment or assessments included in the statewide student
21 assessment system adopted by the Board pursuant to subsection A of
22 this section, shall meet any other high school graduation
23 requirements adopted by the Board pursuant to Section 5 of Enrolled
24 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma

1 Legislature in order to graduate from a public high school with a
2 standard diploma.

3 3. For students who start the ninth grade prior to or during
4 the 2016-2017 school year, school districts shall adopt a plan that
5 establishes the assessment or assessments those students are
6 required to take in order to graduate from a public high school with
7 a standard diploma. The plan may also include any or all of the
8 other high school graduation requirements adopted by the Board
9 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
10 Session of the 55th Oklahoma Legislature that those students will be
11 required to meet in order to graduate from a public high school with
12 a standard diploma.

13 4. The Board shall promulgate rules to ensure that students who
14 transfer into an Oklahoma school district from out-of-state after
15 the junior year of high school shall not be denied the opportunity
16 to be awarded a standard diploma due to differing testing
17 requirements.

18 G. In order to provide an indication of the levels of
19 competency attained by the student in a permanent record for
20 potential future employers and institutions of higher education,
21 school districts shall report on the high school transcript of the
22 student the highest-achieved score on the assessment or assessments
23 included in the statewide student assessment system adopted by the
24

1 Board pursuant to subsection A of this section and any business- and
2 industry-recognized endorsements attained.

3 H. Students who do not perform at a proficiency level on
4 assessments shall be remediated as established in the assessment
5 requirements adopted by the Board pursuant to Section 5 of Enrolled
6 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
7 Legislature, subject to the availability of funding.

8 I. 1. All assessments required by this section shall measure
9 academic competencies in correlation with the subject matter
10 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
11 103.6a of this title and referred to as the Oklahoma Academic
12 Standards. The State Board of Education shall evaluate the subject
13 matter standards to ensure the competencies reflect high standards,
14 are specific, well-defined, measurable, and challenging, and will
15 prepare elementary students for next-grade-level course work and
16 secondary students for postsecondary studies at institutions of
17 higher education or technology center schools without the need for
18 remediation. All subject matter standards shall reflect the goals
19 as set forth in Section 11-103.6 of this title and of improving the
20 state average of college entrance exam scores.

21 2. The State Department of Education shall annually evaluate
22 the results of the assessments. The State Board of Education shall
23 ensure that preliminary results for all statewide assessments are
24 reported to districts no later than June 20 of each year and are

1 presented in a manner that yields detailed, diagnostic information
2 for the purpose of guiding instruction and student remediation. As
3 improvements are made to the assessments required by this section,
4 the Board shall seek to increase the depth of knowledge assessed for
5 each subject. The State Board of Education shall seek to ensure
6 that data yielded from the assessments required in this section are
7 utilized at the school district level to inform instruction,
8 professional development, school improvement, and remediation for
9 students.

10 3. The Commission for Educational Quality and Accountability
11 shall determine the cut scores for the performance levels on all
12 statewide assessments. The Commission shall conduct an ongoing
13 review to compare the statewide assessment content and performance
14 descriptors with those of other states. Upon receipt of the review,
15 the Commission may adjust the cut scores as necessary.

16 4. The State Board of Education, for the purposes of conducting
17 reliability and validity studies, monitoring contractor adherence to
18 professionally accepted testing standards, and providing
19 recommendations for testing program improvement, shall retain the
20 services of an established, independent agency or organization that
21 is nationally recognized for its technical expertise in educational
22 testing but is not engaged in the development of aptitude or
23 achievement tests for elementary or secondary level grades. These
24 national assessment experts shall annually conduct studies of the

1 reliability and validity of the statewide assessments administered
2 pursuant to this section. Validity studies shall include studies of
3 decision validity and concurrent validity.

4 J. 1. The State Board of Education shall promulgate rules
5 setting the assessment window dates for each statewide assessment so
6 that the assessments are administered according to recommended
7 testing protocols and so that the assessment results are reported
8 back to school districts in a timely manner. The vendor shall
9 provide a final electronic data file of all school site, school
10 district, and state results to the State Department of Education and
11 the Office of Educational Quality and Accountability prior to August
12 20 of each year. The Department shall forward the final data files
13 for each school district and each school site in that district to
14 the school district. The Board shall ensure the contract with the
15 vendor includes a provision that the vendor report assessment
16 results directly to the Office of Educational Quality and
17 Accountability at the same time it is reported to the Board.

18 2. State, district, and site level results of all assessments
19 required in this section shall be disaggregated by gender, race,
20 ethnicity, disability status, migrant status, English proficiency,
21 and status as economically disadvantaged, except that such
22 disaggregation shall not be required in a case in which the number
23 of students in a category is insufficient to yield statistically
24 reliable information or the results would reveal personally

1 identifiable information about an individual student. Each school
2 site shall notify the student's parents or legal guardians of the
3 school's performance levels in the Oklahoma School Testing Program
4 as reported in the Oklahoma Educational Indicators Program at the
5 end of each school year.

6 K. The State Board of Education shall be responsible for the
7 field-testing and validation of the statewide assessment system
8 required in subsection A of this section.

9 L. The State Board of Education shall develop, administer, and
10 incorporate as a part of the Oklahoma School Testing Program other
11 assessment programs or procedures including appropriate
12 accommodations for the assessment of students with disabilities as
13 required by the Individuals with Disabilities Education Act (IDEA),
14 20 U.S.C., Section 1400 et seq.

15 M. For purposes of developing and administering alternate
16 assessments for students with the most significant cognitive
17 disabilities, the State Board of Education shall not be subject to
18 subsections D and E of Section 11-103.6a of this title.

19 N. By December 15, 2026, and annually thereafter, the State
20 Board of Education shall electronically submit a report to the
21 Legislature containing data collected for the most recently
22 completed school year on the number and demographics of students who
23 were eligible for advanced mathematics courses, the number and
24 demographics of students who were placed in advanced mathematics

1 courses, the number and demographics of students placed in
2 mathematics intervention courses, and the number and demographics of
3 students not placed in advanced mathematic courses or mathematic
4 intervention courses. The report shall include information on the
5 type and format of advanced mathematic courses and the type and
6 format of mathematic intervention courses.

7 O. The State Board of Education shall provide guidance on how
8 to best develop programming and courses to ensure all impacted
9 students receive rigorous, academically appropriate instruction in
10 mathematics.

11 P. Beginning with the 2026-2027 school year, and for each
12 school year thereafter, all assessments required by this section
13 administered in grades three through eight shall be administered
14 within the last **four (4)** weeks of the school year. The testing
15 window required by this subsection shall not apply to assessments
16 administered as part of the Oklahoma Alternate Assessment Program
17 for students with the most significant cognitive disabilities.

18 SECTION 2. This act shall become effective July 1, 2026.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

23 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
24 April 7, 2026 - DO PASS AS AMENDED